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Perry Lakes Redevelopment Act 2005

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Perry Lakes Redevelopment Act 2005

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Defined Terms

Western Australia

Perry Lakes Redevelopment Act 2005

An Act to provide for the resumption and redevelopment of certain land at Perry Lakes, and for related purposes.

Part 1 — Preliminary

1. Short title

This is the *Perry Lakes Redevelopment Act 2005* ¹.

2. Commencement

(1) Subject to this section, this Act comes into operation on the day on which it receives the Royal Assent ¹.

(2) Part 3 comes into operation on resumption day ¹.

(3) Section 53 comes into operation immediately after the *Planning and Development Act 2005* comes into operation ¹.

3. Terms used in this Act

(1) In this Act, unless the contrary intention appears —

Account means the Perry Lakes Trust Account established under section 41;

AK redevelopment area means the area of land comprised of —

(a) the AK Reserve land; and

(b) any land that is declared to be part of the AK redevelopment area by the regulations,

but not including any part of such land that is declared not to be part of the redevelopment area by the regulations, and in any event not including —

(c) the Perry Lakes land; or

(d) any part of Lot 25 on Deposited Plan 25810, being the land in Certificate of Title Volume 2586 Folio 279, other than the part of that lot referred to in section 6(2)(c);

AK Reserve land means the land being Lot 713 on Deposited Plan 48234 as created under section 6(6);

AK Reserve Minister means the Minister of the Crown to whom the Governor has for the time being committed the administration of the *Western Australian Sports Centre Trust Act 1986*;

approved redevelopment plan means a redevelopment plan in operation under section 28(2) as amended under section 29;

Avenues land means the land being that part of Lot 25 on Deposited Plan 25810 as is described as Stephenson and Underwood Avenues on Deposited Plan 48234 and being part of the land in Certificate of Title Volume 2586 Folio 279;

completion day means a day fixed under section 4(2);

development has the meaning given to that term by the *Planning and Development Act 2005* section 4(1), but does not include any work, act or activity declared by regulations made under this Act not to constitute development;

development approval means a development approval issued by the WAPC under Part 3 Division 5;

district has the meaning given to that term by the *Local Government Act 1995* section 1.4;

Environment Minister means the Minister of the Crown to whom the Governor has for the time being committed the administration of the EP Act;

EP Act means the *Environmental Protection Act 1986*;

EPA means the Environmental Protection Authority continued in existence under the EP Act;

interest, in land, has the meaning given to that term by the *Land Administration Act 1997* section 151;

local planning scheme has the meaning given to that term by the *Planning and Development Act 2005* section 4(1);

Metropolitan Region Scheme has the meaning given to that term by the *Planning and Development Act 2005* section 4(1);

Perry Lakes land means the land being Lot 712 on Diagram 90077 and being the whole of the land in Certificate of Title Volume 2138 Folio 21;

Planning Minister means the Minister of the Crown to whom the Governor has for the time being committed the administration of the *Planning and Development Act 2005*;

s. 4

redevelopment area means the area of land comprised of —

- (a) the Perry Lakes land; and
- (b) the AK redevelopment area;

redevelopment period means the period beginning on resumption day and ending immediately before completion day;

responsible agency —

- (a) for the AK redevelopment area, means the AK Reserve Minister;
- (b) for the Perry Lakes land, means the WALA;

resumed land means the land transferred under section 6(2) or revested under section 6(3), an indicative plan of which is in Schedule 1;

resumption day means a day fixed under section 4(1);

WALA means the Western Australian Land Authority established by the *Western Australian Land Authority Act 1992* section 5;

WAPC means the Western Australian Planning Commission established by the *Planning and Development Act 2005* section 7(1).

- (2) Certificates of Title, Deposited Plans or Diagrams referred to in this Act are those held by the department of the Public Service that principally assists in the administration of the *Transfer of Land Act 1893*².

[Section 3 amended by No. 43 of 2005 s. 53(2); No. 77 of 2006 s. 4 and 17.]

4. Governor may fix certain dates

- (1) On the recommendation of the Planning Minister, the Governor, by a proclamation published in the *Gazette*, may fix a day as resumption day.
- (2) On the recommendation of the Planning Minister, the Governor, by a proclamation published in the *Gazette*, may fix a day as completion day.

(3) The Planning Minister must not make a recommendation under subsection (2) unless —

(a) satisfied —

(i) that the Metropolitan Region Scheme, in so far as it will apply to the redevelopment area on completion day; and

(ii) that any local planning scheme, in so far as it will apply to the redevelopment area on completion day,

does not —

(iii) prevent any development that would be permitted; or

(iv) allow any development that would not be permitted,

in the redevelopment area immediately before completion day under an approved redevelopment plan for the area;

(b) the total of —

(i) the value, determined by the Valuer General, of any land transferred under section 9(1);

(ii) the value, determined by the Valuer General, of any land that will be transferred under section 9(2);

(iii) any funds paid under section 46; and

(iv) any funds that will be paid under section 48, will be at least \$50 million; and

(c) the Planning Minister has published a notice under section 47.

[Section 4 amended by No. 43 of 2005 s. 53(3).]

5. Crown bound

This Act binds the Crown.

Part 2 — Resumption and return of certain lands

6. Certain land resumed

(1) In this section —

registered means registered under the *Transfer of Land Act 1893*.

(2) On resumption day the estate in fee simple of —

(a) the Perry Lakes land;

(b) Lot 711 on Diagram 90080 and being the whole of the land in Certificate of Title Volume 2138 Folio 28;

(c) that part of Lot 25 on Deposited Plan 25810 and being part of the land in Certificate of Title Volume 2586 Folio 279 to be included in Lot 713 on Deposited Plan 48234; and

(d) portion of road shown as Lot 2 on Deposited Plan 48234,

is transferred to and subject to this Act, is to be held by, the Crown in right of the State.

(3) On resumption day —

(a) the absolute property in the Avenues land is revested in the Crown and removed from the operation of the *Transfer of Land Act 1893*;

(b) the land comprising the Avenues land is dedicated as a road; and

(c) the *Land Administration Act 1997* applies as if that land had been dedicated as a road under that Act.

(4) On resumption day every registered and unregistered interest in the resumed land that existed immediately before that day is extinguished, other than the easement 24512/1966 to the Metropolitan Water Supply Sewerage and Drainage Board registered against the Perry Lakes land.

- (5) The Registrar of Titles must do all things necessary under the *Transfer of Land Act 1893* to record in the register kept under that Act the matters effected by this section.
- (6) Without limiting subsection (5), the Registrar of Titles may do all things necessary to create Lot 713 on Deposited Plan 48234 (as depicted in Schedule 2) including (but not limited to) closing the portion of road shown as Lot 2 on Deposited Plan 48234 and amalgamating that portion with Lot 711 on Diagram 90080.
- (7) Despite the *Transfer of Land (Surveys) Regulations 1995* regulation 5(1), Deposited Plan 48234 need not show that part of Lot 25 on Deposited Plan 25810, being part of the land in Certificate of Title Volume 2586 Folio 279, that is not transferred under subsection (2).
- (8) Any matter that is required to be done or that may be done under this section is exempt from fees under the *Transfer of Land Act 1893*.

7. No compensation payable for Perry Lakes land

- (1) A person who holds an interest extinguished by section 6(4) in respect of the Perry Lakes land is not entitled to claim or receive any compensation for the extinguishment.
- (2) The *Land Administration Act 1997* Parts 9 and 10 do not apply to or in relation to the compulsory acquisition of the Perry Lakes land effected by section 6.
- (3) The State is not liable to indemnify any person for any expenses incurred before resumption day in relation to the Perry Lakes land.

8. Compensation for part of the AK Reserve land

- (1) Within 6 months after resumption day the State must pay the Town of Cambridge \$1 700 000 as compensation for the extinguishment by section 6(4) of its interest in the land being —
- (a) Lot 711 on Diagram 90080 and being the whole of the land in Certificate of Title Volume 2138 Folio 28; and
- (b) that part of Lot 25 on Deposited Plan 25810 and being part of the land in Certificate of Title Volume 2586 Folio 279 included in Lot 713 on Deposited Plan 48234.
- (2) The sum to be paid under subsection (1) must be charged to the Consolidated Account which is appropriated accordingly by this section.
- (3) Except as provided by subsection (1), a person who holds an interest extinguished by section 6(4) in respect of the land being —
- (a) Lot 711 on Diagram 90080 and being the whole of the land in Certificate of Title Volume 2138 Folio 28;
- (b) that part of Lot 25 on Deposited Plan 25810 and being part of the land in Certificate of Title Volume 2586 Folio 279 included in Lot 713 on Deposited Plan 48234; and
- (c) portion of road shown as Lot 2 on Deposited Plan 48234,
- is not entitled to claim or receive any compensation for the extinguishment.
- (4) The Land Administration Act 1997 Parts 9 and 10 do not apply to or in relation to the compulsory acquisition of the land referred to in subsection (3) effected by section 6.
- (5) The State is not liable to indemnify any person for any expenses incurred before resumption day in relation to the land referred to in subsection (3).
- [Section 8 amended by No. 77 of 2006 s. 4.]

9. Return of part of Perry Lakes land

- (1) At any time before completion day the State may transfer to the Town of Cambridge any estate in fee simple that the State then holds in any part of the Perry Lakes land.
- (2) On a day that is not later than 6 months after completion day the State must transfer to the Town of Cambridge any estate in fee simple that the State holds on the date of the transfer in any of the Perry Lakes land.
- (3) Any transfer that may or must be made under this section is exempt from fees under the *Transfer of Land Act 1893* and from duty under the *Duties Act 2008*.

[Section 9 amended by No. 12 of 2008 s. 52.]

Part 3 — Redeveloping the redevelopment area

Division 1 — Preliminary

10. Interpretation for the purposes of the EP Act

(1) For the purposes of the EP Act —

(a) this Act is a “scheme Act”;

(b) a draft redevelopment plan, or a draft amendment to an approved redevelopment plan, prepared under Division 4 is a “scheme”;

(c) the WALA is the “responsible authority” in relation to such a scheme relating to the Perry Lakes land;

(d) the AK Reserve Minister is the “responsible authority” in relation to such a scheme relating to the AK redevelopment area;

(e) the Planning Minister is the “responsible Minister” in relation to such a scheme relating to either the Perry Lakes land or the AK redevelopment area;

(f) the period set and notified under section 24 is the “period of public review” in relation to such a scheme relating to either the Perry Lakes land or the AK redevelopment area; and

(g) any approval given under section 27 is a “final approval” in relation to such a scheme relating to either the Perry Lakes land or the AK redevelopment area,

and the EP Act operates accordingly.

(2) For the purposes of the EP Act section 48C(6), the procedure referred to in sections 24 and 25 of this Act is a procedure of the public review of a scheme.

Division 2 — General

11. Perry Lakes land

- (1) The WALA may do all things necessary to plan, undertake, promote and coordinate the redevelopment of the Perry Lakes land.
- (2) The WALA may exercise any of its powers under the *Western Australian Land Authority Act 1992* for the purpose of performing its functions under subsection (1).
- (3) Without limiting subsections (1) and (2) the WALA may do any or all of the following —
 - (a) hold, deal with, exchange or dispose of the Perry Lakes land or any part of it;
 - (b) on behalf of the Crown in the right of the State, sign any document in connection with dealing with, exchanging or disposing of the Perry Lakes land or any part of it;
 - (c) subdivide, amalgamate, improve, develop and alter the Perry Lakes land or any part of it;
 - (d) enter into any contract or arrangement with any person, including a public authority or a local government, for the performance by the person of any work or the supply of equipment or services.
- (4) The WALA must perform its functions under this section in accordance with the approved redevelopment plan for the Perry Lakes land.
- (5) Nothing in this Act prevents the subdivision and sale of the whole or any part of the Perry Lakes land.
- (6) The WALA must not perform functions under this section after completion day.

12. AK Reserve Minister's functions

- (1) The AK Reserve Minister, acting on behalf of, and in the name of, the State, must ensure that the following sporting facilities are constructed —
- _____ (a) facilities for athletics that will serve the people of the whole State;
- _____ (b) facilities for basketball of such a size and standard as are determined by the Minister;
- _____ (c) facilities for rugby of such a size and standard as are determined by the Minister.
- (2) The sporting facilities must be constructed wholly or partly on the AK Reserve land or on land in the AK redevelopment area or on land outside the AK redevelopment area, as the Minister decides, but not on the Perry Lakes land.
- (3) In complying with subsection (1), the AK Reserve Minister must have regard to these principles —
- _____ (a) the consumption of non-renewable resources in the construction and operation of the facilities should be minimised;
- _____ (b) the use of recycled and recyclable materials in the construction of the facilities should be maximised;
- _____ (c) the use of hazardous materials or substances in the construction and operation of the facilities should be minimised;
- _____ (d) the use of natural ventilation and natural light by the facilities should be maximised;
- _____ (e) the noise and light emitted from the constructed facilities should be minimised;
- _____ (f) the facilities should where possible incorporate passive solar design principles and be designed with regard to the local climate;
- _____ (g) the consumption by the facilities of energy generated from non-renewable resources should be minimised by

measures such as using appliances, plant and equipment that minimise energy consumption;

(h) the consumption by the facilities of water from the public water supply system and from underground should be minimised by measures such as reusing grey water, capturing rain water, and using appliances and landscaping with plants that minimise water consumption;

(i) the amount of material, resulting from the construction of the facilities, that is disposed of in landfill sites should be minimised;

(j) the infrastructure shared by the facilities with one another should be maximised;

(k) the facilities should be designed in accordance with the sustainability initiatives in clause B.4.1 of the *Tender shell for the modified qualification based selection process*, version dated 9 March 2005, published by the Department of Housing and Works.

(4) The AK Reserve land must not be developed for a purpose that is inconsistent with the purpose for which it was reserved under the Metropolitan Region Scheme immediately before the coming into operation of this section.

(5) The AK Reserve Minister, acting on behalf of and in the name of the State, may do all things necessary for the purposes of subsection (1).

(6) Without limiting subsection (5) the AK Reserve Minister, acting on behalf of and in the name of the State, may do any or all of the following —

(a) hold, deal with, exchange or dispose of the AK Reserve land or any part of it;

(b) sign any document in connection with dealing with, exchanging or disposing of the AK Reserve land or any part of it;

(c) carry out any investigation, survey, exploration or feasibility study;

(d) enter into any contract or arrangement with any person, including a public authority or a local government, for the performance by the person of any work or the supply of equipment or services;

(e) apply for the grant of any licence or other authority required for the purposes of this Act.

(7) The AK Reserve Minister must comply with the approved redevelopment plan for the AK redevelopment area.

(8) Nothing in this Act prevents all or part of the AK Reserve land from being the subject of an order made under the *Land Administration Act 1997* section 82.

(9) The AK Reserve Minister must not perform functions under this section after completion day.

13. Compliance with written laws

Nothing in this Division is to be read as conferring on the WALA or the AK Reserve Minister in the performance of their functions any immunity from the operation of any written law.

Division 3 — Operation of planning and other laws affected

14. Certain planning schemes cease to apply

(1) In this section —

planning scheme means —

(a) the Metropolitan Region Scheme; or

(b) a local planning scheme.

(2) On resumption day, any planning scheme that applies to the redevelopment area immediately before that day, ceases to apply to that area and to any development of that area commenced on or after that day.

(3) If, after resumption day, any land is declared by the regulations to be part of the AK redevelopment area, any planning scheme that applies to that land immediately before the declaration ceases to apply to that land and to any development of that land commenced on or after that time.

(4) The Interpretation Act 1984 section 37 applies in respect of subsections (2) and (3) as if a planning scheme were an enactment and the subsections repealed the scheme.

(5) Subsections (2) and (3) do not affect the operation of section 15.

(6) If, after resumption day, any land is declared by the regulations not to be part of the AK redevelopment area, a planning scheme that, but for subsection (2) or (3), would apply to the land, applies to the land.

[Section 14 amended by No. 43 of 2005 s. 53(4).]

15. Certain planning schemes affecting redevelopment area not to operate until completion day

(1) Any amendment made to the Metropolitan Region Scheme after resumption day and before completion day, in so far as it applies to the redevelopment area, has no effect until completion day.

(2) A local planning scheme, or an amendment to such a scheme, made after resumption day and before completion day, in so far as it applies to the redevelopment area, has no effect until completion day.

(3) Subject to subsections (1) and (2), this Act does not prevent an amendment referred to in subsection (1) or (2), or a local planning scheme referred to in subsection (2), being made after resumption day and before completion day so as to commence on completion day.

[Section 15 amended by No. 43 of 2005 s. 53(5) and (6).]

16. Certain local laws suspended

(1) In this section —

building local laws means local laws made under the *Local Government (Miscellaneous Provisions) Act 1960* section 433.

(2) On resumption day any building local laws made by the local government of a district in which the redevelopment area is situated cease to apply to the redevelopment area.

(3) If, after resumption day, any land is declared by the regulations to be part of the AK redevelopment area, any building local laws made by the local government of a district in which the land is situated cease to apply to the land.

(4) The *Interpretation Act 1984* section 37 applies in respect of subsections (2) and (3) as if they repealed the building local laws.

(5) If, after resumption day, any land is declared by the regulations not to be part of the AK redevelopment area, any building local laws made by the local government of a district in which the land is situated that, but for subsection (2) or (3), would apply to the land, apply to that land.

(6) On completion day any building local laws made by the local government of a district in which the redevelopment area is situated that, but for subsection (2) or (3), would apply to the area, apply to the area.

17. Operation of other laws may be suspended

The *Planning and Development Act 2005* section 132, with any necessary changes, applies for the purpose of carrying out an approved redevelopment plan as if a reference in that section —

(a) to an Act were a reference to a written law;

(b) to an approved scheme were a reference to that approved redevelopment plan; and

(c) to the responsible authority were a reference to —

(i) in the case of the Perry Lakes land, the WALA;

(ii) in the case of the AK redevelopment area, the
AK Reserve Minister.

[Section 17 amended by No. 43 of 2005 s. 53(7).]

Division 4 — Redevelopment plans

18. Time for complying with this Division

Subject to sections 19 to 28, the actions required under those
sections must be done as soon as practicable after resumption
day.

19. Draft redevelopment plans to be prepared

(1) The WALA must prepare a draft redevelopment plan for the
Perry Lakes land.

(2) The AK Reserve Minister must prepare a draft redevelopment
plan for the AK redevelopment area.

(3) In preparing a draft redevelopment plan, the responsible agency
concerned must —

(a) make reasonable endeavours to consult such public
authorities and persons as appear to the agency would be
likely to be affected by the plan if it were approved; and

(b) include in the plan any provision that the agency
considers will promote the orderly and proper planning,
development and management of the land concerned.

(4) A draft redevelopment plan may include any provision that may
be made by a local planning scheme under the *Planning and
Development Act 2005*.

(5) The draft redevelopment plan for the Perry Lakes land must
include the provisions required by section 27(3).

- (6) The draft redevelopment plan for the AK redevelopment area must include the provisions required by section 27(4).

[Section 19 amended by No. 43 of 2005 s. 53(8).]

20. Draft redevelopment plan to be submitted to local government for comment

A responsible agency that prepares a draft redevelopment plan under section 19 must submit it for comment to the local government in whose district the land concerned is situated.

21. Draft redevelopment plan to be submitted to EPA

- (1) A responsible agency that prepares a draft redevelopment plan under section 19 must submit it to the EPA together with such written information about it as is sufficient to enable the EPA to comply with EP Act section 48A in relation to it.

- (2) If, under the EP Act section 48A(1)(b)(i), the EPA informs the responsible agency that the draft should be assessed by the EPA under the EP Act Part IV Division 3, the agency must —

(a) within 7 days after the last day on which submissions may be made to the agency under section 25, send the EPA a copy of each submission made under section 25 that relates wholly or in part to any environmental issue raised by the draft; and

(b) within 42 days after that last day, advise the EPA of the agency's views on and response to each environmental issue to which any such submission relates.

- (3) If, under the EP Act section 48C(1)(a), the EPA requires the responsible agency to undertake an environmental review of the draft, the agency must, if it wants to proceed with the draft, undertake the review in accordance with the instructions issued under that section.

22. Draft redevelopment plan to be submitted to WAPC

- (1) A responsible agency that prepares a draft redevelopment plan under section 19 must submit it to the WAPC.

- (2) The draft must not be submitted to the WAPC before —
- (a) 35 days have elapsed since the day on which it was submitted to the local government under section 20;
 - (b) the agency has sent any environmental review required by section 21(3) to the EPA; and
 - (c) either —
 - (i) the EPA has advised the agency that the review has been undertaken in accordance with the instructions issued under the EP Act section 48C(1)(a); or
 - (ii) 30 days have elapsed since the day on which the review was sent to the EPA and the EPA has not advised whether or not the review has been undertaken in accordance with those instructions,
- whichever first occurs.
- (3) The draft must be submitted to the WAPC together with any comments received from the local government to which it was submitted under section 20.
- (4) If the EPA advises the responsible agency that the review has not been undertaken in accordance with the instructions issued under the EP Act section 48C(1)(a), the agency may —
- (a) consult with the Environment Minister and, if possible, agree with him or her on whether or not the review has been undertaken in accordance with those instructions; or
 - (b) comply with section 21(3).
- (5) If under subsection (4)(a) the agency and the Environment Minister consult then —
- (a) if they agree whether or not the review has been undertaken in accordance with the instructions issued under the EP Act section 48C(1)(a), their decision is final and cannot be appealed; and
 - (b) if they cannot so agree, the EP Act section 48J applies.

23. WAPC's functions as to draft redevelopment plan

- (1) Having considered a draft redevelopment plan submitted to it under section 22 by a responsible agency, the WAPC may —
- (a) consent or refuse to consent to the public notification of the draft; or
- (b) consent to such public notification subject to the draft being amended as directed by the WAPC.
- (2) If under subsection (1) the WAPC refuses to consent to the public notification of a draft redevelopment plan, the WAPC must give the agency directions as to the preparation and submission to the WAPC of a further draft redevelopment plan.
- (3) A responsible agency must comply with any direction given under subsection (1) or (2).

24. Public notification of draft redevelopment plan

- (1) If under section 23(1), the WAPC consents to the public notification of a draft redevelopment plan, the responsible agency that prepared the draft must publish a notice stating —
- (a) where and when a copy of the draft can be inspected and where and when such a copy can be obtained;
- (b) the effect of section 25; and
- (c) the period within which submissions about the draft can be made, set under subsection (3).
- (2) The notice must be published —
- (a) in the *Gazette*; and
- (b) in 2 issues of a newspaper circulating in the local government district in which the redevelopment area is situated.
- (3) The period within which submissions about the draft can be made must be set by the responsible agency, but must not be less than 60 days after the day on which the notice is published in the *Gazette*.

- (4) Regulations made under this Act may prescribe a fee for obtaining a copy of a draft redevelopment plan.

25. Public submissions on draft redevelopment plan

- (1) Any person may send the responsible agency that prepared a draft redevelopment plan, notice of which has been published in the *Gazette* under section 24, a written submission about the draft.
- (2) Any such submission must be received by the office of the responsible agency within the period stated in that notice.

26. Draft redevelopment plan to be submitted to Planning Minister

- (1) After section 24 has been complied with and the period within which submissions about a draft redevelopment plan can be made has elapsed, the responsible agency that prepared the draft must submit it to the WAPC.
- (2) The draft may include amendments that take account of any comments received from the local government concerned and any submission received under section 25.
- (3) The draft must be submitted to the WAPC together with a summary, and a report by the responsible agency on the merits, of all submissions received under section 25.
- (4) After considering the draft and the material submitted under subsection (3), the WAPC must submit the draft to the Planning Minister with a report about it and a recommendation to that Minister that he or she —
- (a) approve it;
- (b) refuse to approve it; or
- (c) approve it subject to amendments being made to it, as recommended by the WAPC.

27. Planning Minister's functions as to draft redevelopment plans

- (1) After considering a draft redevelopment plan, and the report and recommendation about it, submitted to him or her under section 26, the Planning Minister must —
- (a) approve it;
 - (b) refuse to approve it; or
 - (c) approve it subject to amendments being made to it, as directed by the Planning Minister.
- (2) The Planning Minister must not act under subsection (1) —
- (a) until —
 - (i) under the EP Act section 48A(1)(a), the EPA has informed the responsible agency that prepared the draft that the EPA considers that the draft should not be assessed by the EPA under the EP Act Part IV Division 3;
 - (ii) the 28 day period referred to in the EP Act section 48A(1)(b)(i) has expired without the EPA having, under that section, informed the responsible agency that prepared the draft; or
 - (iii) the Planning Minister has received a statement delivered under the EP Act section 48F(2), or a decision has been made under the EP Act section 48J, in respect of the conditions, if any, to which the draft is subject and he or she is satisfied that the conditions, if any, to which the draft is subject have been incorporated into the draft received by the Planning Minister,
 - whichever first occurs; or
 - (b) if he or she has reached agreement with the Environment Minister under the EP Act section 48A(2)(b).

(3) The Minister must not approve a draft redevelopment plan for the Perry Lakes land unless satisfied that under its provisions —

(a) any development on the land will, when compared with the current standard practice as determined by the WAPC —

(i) significantly reduce the amount of material, resulting from any development, that is disposed of in landfill sites;

(ii) significantly increase the recycling of material from any demolition of structures that are on the land on resumption day;

(iii) significantly increase the use in any development of recycled materials and materials from renewable resources;

(iv) significantly reduce any harm to the environment that may be caused by demolition or construction activities or by stormwater;

(b) any building or structure constructed on, and any use of, the land will —

(i) significantly reduce the consumption of water by people living on the Perry Lakes land with the aim that they will consume not more than 155 kilolitres per person per year from the public water supply system; and

(ii) significantly reduce the consumption of energy generated from non-renewable resources by people living on the Perry Lakes land with the aim that the amount of such energy consumed by them per dwelling per year will be 25% less than the average amount, as determined by the WAPC, of such energy consumed per dwelling in 2005 by comparable dwellings in comparable meteorological locations in metropolitan Perth;

- (c) on subdivision at least 15% of the land will be ceded to the State for public open space and that the land ceded will be located so as to —

 - (i) generally adjoin Alderbury Street and Brookdale Street;
 - (ii) contain and conserve near those streets as many of the trees that are indigenous to the land as possible having regard to the need to connect 2 roads to those streets; and
 - (iii) provide for the establishment of flora that is indigenous to the land in areas within the public open space;
- (d) no building will be built on the land that is over 5 storeys above the existing level of the ground on which the building is built; and
- (e) accommodation designed for people who have reached 55 years of age will be included in the development.
- (4) The Minister must not approve a draft redevelopment plan for the AK redevelopment area unless satisfied it contains provisions that ensure —

 - (a) that as much of the existing flora on the AK Reserve land as possible is conserved in a corridor running in a broadly east-west direction; and
 - (b) that the corridor is enhanced with flora that is indigenous to the land so as to create a continuous belt of such flora.
- (5) If the Planning Minister refuses to approve a draft redevelopment plan, the Minister must give directions as to the preparation of a further draft redevelopment plan and as to the submission of the plan under this section and such of sections 20 and 22 as the Minister may specify.
- (6) A responsible agency that prepares a draft redevelopment plan must comply with any direction given by the Planning Minister under subsection (1) or (5).

28. Planning Minister's approval to be gazetted

- (1) If under section 27 the Planning Minister approves a redevelopment plan, the responsible agency that prepared the draft of it must publish a notice in the *Gazette* of the approval and of where and when a copy of the approved plan can be inspected and where and when a copy can be obtained.
- (2) An approved redevelopment plan comes into operation on the day on which the notice is published under subsection (1), or on any later day specified in the plan.
- (3) Regulations made under this Act may prescribe a fee for obtaining a copy of an approved redevelopment plan.

29. Redevelopment plan may be amended

- (1) The responsible agency that prepared the draft of an approved redevelopment plan may prepare a draft amendment to the plan.
- (2) Sections 20 to 28, with any necessary changes, apply to a draft amendment as if —
 - (a) any reference in those sections to a draft redevelopment plan were references to the draft amendment; and
 - (b) the reference in section 27(5) to a further draft redevelopment plan were a reference to a further draft amendment.

Division 5 — Development control

30. *Planning and Development Act 2005* s. 135 or 136, operation of

When exercising any power under the *Planning and Development Act 2005* section 135 or 136 in relation to a part of the redevelopment area the WAPC must have regard to the approved development plan that relates to that part of the redevelopment area.

[Section 30 amended by No. 43 of 2005 s. 53(9).]

31. Undertaking unauthorised developments an offence

- (1) A person who, in the redevelopment period, undertakes any development on any part of the redevelopment area, or causes any such development to be undertaken, commits an offence unless the development is authorised by a development approval.
- (2) A person who, while a development approval is in force, undertakes any development, or causes any such development to be undertaken, that contravenes the approval, or any condition to which the approval is subject, commits an offence.
- (3) A person who commits an offence under subsection (1) or (2) is liable to a fine of \$50 000 and, for each separate and further offence committed by the person under the *Interpretation Act 1984* section 71, a fine of \$5 000.
- (4) To avoid doubt, subsections (1), (2) and (3) apply to the WALA and to the AK Reserve Minister.
- (5) It is immaterial for the purposes of this Division that a development is undertaken in the performance of a function vested in a person by a written law.

32. Application for development approval

- (1) An application for a development approval must be made to the WAPC in the prescribed form with the fee (if any) prescribed by the regulations.
- (2) An application must be accompanied by plans and specifications of the proposed development.
- (3) The applicant must provide any information or documents relating to the proposed development that the WAPC may reasonably require.
- (4) An application cannot be made under this section on or after completion day.

33. WAPC to notify certain people of applications

- (1) On receiving an application for a development approval made under section 32, the WAPC must give written notice of its particulars to —
- _____ (a) each public authority that appears to the WAPC to have functions relevant to, or whose operations are likely to be affected by, the proposed development; and
- _____ (b) the local government in whose district the land concerned is situated.
- (2) A person notified under subsection (1) may make submissions to the WAPC about the proposed development.

34. WAPC's functions as to applications

- (1) In considering an application for a development approval made under section 32, the WAPC must have regard to —
- _____ (a) the approved redevelopment plan that relates to the land;
- _____ (b) any submissions received from a person notified under section 33(1);
- _____ (c) the requirements of orderly and proper planning; and
- _____ (d) the preservation of the amenities of the area.
- (2) After considering an application for a development approval made under section 32, the WAPC may —
- _____ (a) refuse to issue a development approval for the proposed development;
- _____ (b) issue such an approval; or
- _____ (c) issue such an approval subject to any condition decided by the WAPC.
- (3) Without limiting subsection (2)(c), a development approval may be issued subject to a condition limiting the time for which the approval remains in force.

(4) The WAPC must not act under subsection (2) until —

(a) at least 42 days after the day on which section 33(1) is
complied with; or

(b) final submissions are made to it by each person notified
under section 33(1),

whichever occurs first.

(5) If on completion day the WAPC has not acted under
subsection (2) in respect of an application, the WAPC must
forward the application, and any submissions received from a
person notified under section 33(1), to the person or persons to
whom, under —

(a) the Metropolitan Region Scheme; or

(b) a local planning scheme that operates in respect of the
land to which the application relates,

an application for approval for development must be made.

(6) An application that is forwarded under subsection (5) is to be
taken to be an application for approval for development made
under —

(a) the Metropolitan Region Scheme; or

(b) a local planning scheme that operates in respect of the
land to which the application relates,

as the case requires.

(7) The WAPC must give written notice of any decision under
subsection (2), or any action taken under subsection (5), to the
applicant and each person notified under section 33(1).

(8) Subject to any condition limiting the time for which it remains
in force, a development approval remains in force on and after
completion day if the development to which it applies has not
been completed before completion day.

[Section 34 amended by No. 43 of 2005 s. 53(10) and (11).]

35. Review of WAPC's decision by SAT

An applicant for a development approval may apply to the State Administrative Tribunal for a review, in accordance with the *Planning and Development Act 2005* Part 14, of a decision made under section 34 in respect of the applicant's application.

[Section 35 amended by No. 43 of 2005 s. 53(12).]

36. Building laws, operation of

(1) In this section —

building laws means —

(a) the *Local Government (Miscellaneous Provisions) Act 1960* Part XV, other than Part XV Division 20; and

(b) regulations made under Part XV Division 20 of that Act;

Housing Minister means the Minister of the Crown to whom the Governor has for the time being committed the administration of the *Local Government (Miscellaneous Provisions) Act 1960* Part XV;

relevant local government means the local government of the district in which the Perry Lakes land is situated;

transition day means the day on which the *Perry Lakes Redevelopment Amendment Act 2010* section 4 comes into operation.

(2) In so far as the building laws apply to or in respect of any building that is or may be constructed, or to any activity that is or may be carried out, on the Perry Lakes land, the building laws apply until but not including transition day as if —

(a) any reference in them to the local government were instead a reference to the Housing Minister; and

(b) any reference in them to the chief executive officer of the local government were instead a reference to the Housing Minister.

(3) Until but not including transition day, the Housing Minister has and may perform any function under the building laws that the relevant local government has in respect of any building that is or may be constructed, or of any activity that is or may be carried out, on the Perry Lakes land.

(4) On transition day any decision made under the building laws by the Housing Minister in respect of any matter connected with the Perry Lakes land has effect as if it had been made by the relevant local government.

(5) On or as soon as practicable after transition day the Housing Minister must give the relevant local government —

(a) a copy of any approval, licence or other document issued by the Housing Minister under the building laws in respect of any matter connected with the Perry Lakes land;

(b) any application that has been made under the building laws to the Housing Minister in respect of any matter connected with the Perry Lakes land and that has not been decided by the Housing Minister;

(c) any fee received by the Housing Minister in respect of any such application; and

(d) any other document received by the Housing Minister under the building laws in respect of any matter connected with the Perry Lakes land.

(6) On receiving an application referred to in subsection (5)(b), the relevant local government must deal with it as if it had been made to the local government.

[Section 36 amended by No. 53 of 2010 s. 4.]

Division 6 — Unauthorised developments

37. Term used in this Division

In this Division —

unauthorised development means any development —

- (a) that occurs in the redevelopment period and that is not authorised by a development approval; or
- (b) that contravenes a development approval or any condition to which a development approval is subject.

38. Unauthorised developments, WAPC's powers as to

(1) The WAPC, by a written notice served on the person, may —

- (a) direct a person who has undertaken an unauthorised development to remove, pull down, take up, or alter the development and to do so before a day specified in the notice being a day not less than 21 days after the day on which the notice is served; or
- (b) direct a person who is undertaking an unauthorised development to stop doing so immediately; or
- (c) give both such directions to one person.

(2) If under subsection (1) a person is given a direction, the person may apply to the State Administrative Tribunal for a review, in accordance with the *Planning and Development Act 2005* Part 14, of the decision to give the direction.

(3) If an application is made under subsection (2) in respect of a direction given under subsection (1)(a), the direction is suspended pending the determination of the application.

(4) If the State Administrative Tribunal confirms or varies a direction given under subsection (1)(a), it may, by written notice served on the person, direct the person to comply with the direction as so confirmed or varied, before a day specified in the notice being a day not less than 21 days after the day on which the notice is served.

(5) A person served with a notice under this section must obey it.

Penalty:

- (a) a fine of \$50 000;

(b) for each separate and further offence committed by the person under the *Interpretation Act 1984* section 71, a fine of \$5 000.

(6) If a person does not obey a notice served on the person under subsection (1)(a) and —

(a) an application is not made under subsection (2) within the time allowed for doing so; or

(b) such an application is made and is determined,

the WAPC, subject to the determination, may itself remove, pull down, take up or alter the development.

(7) The WAPC may recover the costs incurred by the WAPC in exercising the powers in subsection (6) from the person who did not obey as a debt in a court of competent jurisdiction.

[Section 38 amended by No. 43 of 2005 s. 53(13).]

Division 7 — Miscellaneous

39. Planning Minister's powers to ensure environmental conditions are met

(1) In this section —

assessed scheme means an approved redevelopment plan that is an assessed scheme within the meaning of the EP Act;

environmental condition means a condition agreed under the EP Act section 48F or decided under the EP Act section 48J.

(2) After receiving advice from the Environment Minister under the EP Act section 48H(4), the Planning Minister may, in relation to a development implementing an assessed scheme, exercise one or more of these powers —

(a) by a written notice served on the person who is undertaking the development, direct the person to stop doing so for a period specified in the notice, being a period that begins when the notice is served and ends not more than 24 hours later;

- (b) cause the WAPC to serve a written notice on the person who is undertaking the development directing the person to take such steps as are specified in the notice, within such period as is specified in the notice, for the purpose of —
- (i) complying with; or
- (ii) preventing any non-compliance with,
the environmental condition to which the Environment Minister's advice relates;
- (c) advise the WAPC to cause such steps to be taken as are necessary for the purpose of —
- (i) ensuring compliance with; or
- (ii) preventing any non-compliance with,
the environmental condition to which the Environment Minister's advice relates.
- (3) A person served with a notice under subsection (2) must comply with it.
- Penalty:
- (a) a fine of \$50 000;
- (b) for each separate and further offence committed by the person under the *Interpretation Act 1984* section 71, a fine of \$5 000.
- (4) Nothing in this section prevents or otherwise affects the application of the EP Act Part V to —
- (a) a development referred to in subsection (2); or
- (b) pollution or environmental harm caused by any non-compliance with an environmental condition referred to in subsection (2).

40. Annual reports about redevelopment

As soon as practicable after the end of each financial year, the Planning Minister and the AK Reserve Minister must jointly

Perry Lakes Redevelopment Act 2005

Part 3 Redeveloping the redevelopment area

Division 7 Miscellaneous

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[prepare a report about the redevelopment of the redevelopment area and cause it to be laid before each House of Parliament.](#)

Part 4 — Financial provisions

41. Perry Lakes Trust Account established

- (1) An agency special purpose account called the Perry Lakes Trust Account is established under the *Financial Management Act 2006* section 16.
- (2) The Planning Minister must control and administer the Account.
- (3) For the purposes of the *Financial Management Act 2006* section 52, the administration of the Account is to be regarded as a service of the department of the Public Service that principally assists the Planning Minister to administer the *Planning and Development Act 2005*.

[Section 41 amended by No. 43 of 2005 s. 53(14); No. 77 of 2006 s. 17.]

42. Amounts to be credited to the Account

The following are to be credited to the Account —

- (a) the proceeds of the sale of any of the Perry Lakes land by the WALA;
- (b) any income from the investment of moneys standing to the credit of the Account;
- (c) moneys appropriated by Parliament for the purposes of this Act;
- (d) moneys borrowed by the AK Reserve Minister under section 44;
- (e) moneys advanced to the Account under the authority of section 45;
- (f) any other moneys lawfully made available to the Account.

[Section 42 amended by No. 77 of 2006 s. 17.]

43. Amounts to be charged to the Account

- (1) The following are to be charged to the Account —
- (a) the expenses of administering the Account and the provisions of this Act relating to the Account;
 - (b) all costs and expenses incurred under this Act in planning, undertaking, promoting and coordinating the redevelopment of the Perry Lakes land including, without limiting the foregoing, the costs and expenses of —
 - (i) complying with Part 3 and obtaining any approval for any development on the land;
 - (ii) undertaking any development on the land, including subdivision and project management;
 - (iii) marketing any part of the land that is to be sold; and
 - (iv) selling any part of the land;
 - (c) all expenses incurred by the AK Reserve Minister in complying with Part 3 and obtaining any approval for any development to be done under that Part;
 - (d) 52% of the costs incurred in designing and constructing the athletics facilities referred to in section 12(1)(a);
 - (e) the costs incurred in designing and constructing the facilities referred to in section 12(1)(b) and (c);
 - (f) a sum of \$5 million towards the costs of maintaining, operating and managing the athletics facilities referred to in section 12(1)(a);
 - (g) the costs, not exceeding \$1 million, of enhancing the corridor referred to in section 27(4) with flora that is indigenous to the land;
 - (h) moneys necessary to be paid by way of —
 - (i) repayment of principal moneys borrowed under section 44; and

(ii) interest on and other expenses of borrowings under section 44;

(i) moneys necessary to be paid by way of the interest on, and repayment of, any moneys advanced to the Account by the Treasurer under section 45;

(j) any moneys paid under section 46;

(k) any expenses prescribed by the regulations to be expenses that are to be charged to the Account.

(2) The sum charged to the Account under subsection (1)(f) must be credited to a Treasurer's special purpose account established for the purposes referred to in subsection (1)(f) under section 10 of the Financial Management Act 2006.

[Section 43 amended by No. 77 of 2006 s. 17.]

44. Power to borrow

(1) The WALA or the AK Reserve Minister may, if the Treasurer approves, borrow sums of money upon the guarantee of the Treasurer for the purposes of carrying out the WALA's functions under section 11 or the Minister's functions under section 12, as the case requires.

(2) The WALA or the AK Reserve Minister may borrow money with the prior approval in writing of the Treasurer, but not otherwise, and any borrowing is to be upon terms and conditions that the Treasurer approves.

(3) This section authorises the Treasurer, for and on behalf of the State, to give any approval or guarantee that this section requires and the guarantee may include the guarantee of interest.

(4) Any money borrowed by the WALA or the AK Reserve Minister under this section may be raised as one loan or as several loans and in any manner that the Treasurer may approve.

(5) Before a guarantee is given by the Treasurer under this section, the WALA or the AK Reserve Minister must give to the

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Treasurer any security that the Treasurer requires and execute any instruments necessary for giving that security.

(6) Moneys borrowed under this section can only be used for a purpose referred to in subsection (1).

(7) The due payment of money payable by the Treasurer under a guarantee under this section is to be charged to and paid out of the Consolidated Account, and this subsection appropriates that Account accordingly.

[Section 44 amended by No. 77 of 2006 s. 4 and 5(3).]

45. Treasurer may make advances to the Account

(1) Where the Treasurer is of the opinion that the moneys standing to the credit of the Account are at any time insufficient for the purposes of this Act the Treasurer may advance to the Account moneys sufficient for the time being to make up the deficiency.

(2) Moneys advanced under subsection (1) are to be subsequently repaid to the Treasurer as and when moneys are available to the Account to make repayment.

(3) Moneys advanced by the Treasurer under this section are so long as they remain unpaid a charge on the Account.

[Section 45 amended by No. 77 of 2006 s. 17.]

46. Payments to Town of Cambridge

With the prior approval in writing of the Treasurer and the AK Reserve Minister, the Planning Minister may pay funds standing to the credit of the Account to the Town of Cambridge.

[Section 46 amended by No. 77 of 2006 s. 17.]

47. Notice that no costs or expenses are chargeable to Account

When the Planning Minister is satisfied that there are no costs or expenses chargeable to the Account, or that satisfactory alternative arrangements have been made for the payment of

those costs and expenses, the Minister may publish a notice to that effect in the *Gazette*.

[Section 47 amended by No. 77 of 2006 s. 17.]

48. Closure of Account

On completion day —

(a) any funds standing to the credit of the Account are to be paid to the Town of Cambridge; and

(b) the Account is then to be closed.

[Section 48 amended by No. 77 of 2006 s. 17.]

Part 5 — Miscellaneous

49. Delegation

- (1) A Minister who has a function under this Act may delegate the function to another person, other than this power to delegate.
- (2) Any such delegation must be in writing.
- (3) A person performing a function delegated under subsection (1), is to be taken to do so in accordance with the terms of the delegation unless the contrary is shown.
- (4) This section does not limit a Minister's ability to act through an officer or agent.

50. Body corporate's officers, liability of

- (1) In this section —
officer of a body corporate, has the meaning given to that term in the *Corporations Act 2001* of the Commonwealth but does not include an employee of the body unless the employee was concerned in the management of the body.
- (2) If a body corporate is charged with an offence under this Act, every person who was an officer of the body at the time of the alleged offence may also be charged with the offence.
- (3) If a body corporate and an officer are charged as permitted by subsection (2) and the body corporate is convicted of the offence, the officer is to be taken to have also committed the offence, subject to subsection (6).
- (4) If a body corporate commits an offence under this Act, then, although the body is not charged with the offence, every person who was an officer of the body at the time the offence was committed may be charged with the offence.
- (5) If an officer is charged as permitted by subsection (4) and it is proved that the body corporate committed the offence, the

officer is to be taken to have also committed the offence, subject to subsection (6).

(6) If under this section an officer is charged with an offence it is a defence to prove —

(a) that the offence was committed without the officer's consent or connivance; and

(b) that the officer took all the measures to prevent the commission of the offence that he or she could reasonably be expected to have taken having regard to the officer's functions and to all the circumstances.

51. Regulations

(1) The Governor may make regulations prescribing all matters that are required or permitted by this Act to be prescribed, or are necessary or convenient to be prescribed, for giving effect to the purposes of this Act.

(2) Without limiting subsection (1), regulations may provide for —

(a) the procedure to be followed in applications for approval under Part 3 Division 5; and

(b) the imposition and payment of fees and charges in connection with those applications.

52. Review of Act

(1) The Minister must carry out a review of the operation and effectiveness of this Act as soon as is practicable after the expiration of 5 years from the commencement of this Act.

(2) In the course of the review the Minister must consider and have regard to —

(a) the need for the continuation of this Act; and

(b) any other matters that appear to the Minister to be relevant to the operation and effectiveness of this Act.

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(3) The Minister must prepare a report based on the review and, as soon as is practicable after the report is prepared, cause it to be laid before each House of Parliament.

[53. Omitted under the Reprints Act 1984 s. 7(4)(e).]

[Part 6 (s. 54) omitted under the Reprints Act 1984 s. 7(4)(e).]

Schedule 1 — Resumed land

[\[s. 3\]](#)



Schedule 2 — Lot 713 on Deposited Plan 48234

[s. 6(6)]

**HELD BY DLI
IN DIGITAL FORM ONLY**

SSA NO

TYPE: FREEHOLD

PURPOSE: ACQUISITION

PLAN OF:

**LOT 713 &
ROADS**

DATE: 1-12-2005

DATE: 1-12-2005

DISTRICT: SWAN

TOWNSHIP: TOWN OF CAMBRIDGE

LOCAL AUTHORITY: FLOREAT

FORMER TENURE: FREEHOLD

SEE TABLE

AREA: 14,000

AREA IN METRES

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Notes

¹ This is a compilation of the *Perry Lakes Redevelopment Act 2005* and includes the amendments made by the other written laws referred to in the following table ^{1a}. The table also contains information about any reprint.

Compilation table

<u>Short title</u>	<u>Number and year</u>	<u>Assent</u>	<u>Commencement</u>
<i>Perry Lakes Redevelopment Act 2005</i>	43 of 2005 (as amended by this Act s. 53)	19 Dec 2005	Act other than Pt. 3 and s. 53: 19 Dec 2005 (see s. 2(1)); Pt. 3: 3 Feb 2006 (see s. 2(2) and 4(1) and <i>Gazette</i> 3 Feb 2006 p. 607); s. 53: 9 Apr 2006 (see s. 2(3) and <i>Gazette</i> 21 Mar 2006 p. 1077)
<i>Financial Legislation Amendment and Repeal Act 2006</i> s. 4, 5(3) and 17	77 of 2006	21 Dec 2006	1 Feb 2007 (see s. 2(1) and <i>Gazette</i> 19 Jan 2007 p. 137)
<i>Duties Legislation Amendment Act 2008</i> s. 52	12 of 2008	14 Apr 2008	1 Jul 2008 (see s. 2(d))
Reprint 1: The Perry Lakes Redevelopment Act 2005 as at 17 Oct 2008 (includes amendments listed above)			
<i>Perry Lakes Redevelopment Amendment Act 2010</i>	53 of 2010	8 Dec 2010	s. 1 and 2: 8 Dec 2010 (see s. 2(a)); Act other than s. 1 and 2: 9 Dec 2010 (see s. 2(b))

^{1a} On the date as at which this compilation was prepared, provisions referred to in the following table had not come into operation and were therefore not included in this compilation. For the text of the provisions see the endnotes referred to in the table.

Provisions that have not come into operation

<u>Short title</u>	<u>Number and year</u>	<u>Assent</u>	<u>Commencement</u>
<i>Building Act 2011</i> s. 167 ³	24 of 2011	11 Jul 2011	To be proclaimed (see s. 2(b))

² The department principally assisting in the administration of the *Transfer of Land Act 1893* became, in January 2007, a statutory authority. Certificates, plans and

diagrams are now being held by the Western Australian Land Information Authority (see the *Land Information Authority Act 2006* s. 100).

³ On the date as at which this compilation was prepared, the *Building Act 2011* s. 167 had not come into operation. It reads as follows:

167. Perry Lakes Redevelopment Act 2005 amended

(1) This section amends the *Perry Lakes Redevelopment Act 2005*.

(2) In section 16(1) delete the definition of **building local laws** and insert:

building local laws means any of the following —

- (a) local laws made under the *Local Government (Miscellaneous Provisions) Act 1960* section 433 (deleted by the *Building Act 2011* section 153(2));
- (b) local laws made under the *Local Government Act 1995* about matters mentioned in section 3.5(4A) of that Act.

Defined Terms

*[This is a list of terms defined and the provisions where they are defined.
The list is not part of the law.]*

Defined Term	Provision(s)
Account	3(1)
AK redevelopment area.....	3(1)
AK Reserve land	3(1)
AK Reserve Minister.....	3(1)
approved redevelopment plan	3(1)
assessed scheme	39(1)
Avenues land	3(1)
building laws	36(1)
building local laws	16(1)
completion day	3(1)
development	3(1)
development approval	3(1)
district.....	3(1)
Environment Minister	3(1)
environmental condition.....	39(1)
EP Act	3(1)
EPA	3(1)
Housing Minister	36(1)
interest	3(1)
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Metropolitan Region Scheme	3(1)
officer	50(1)
Perry Lakes land.....	3(1)
Planning Minister	3(1)
planning scheme.....	14(1)
redevelopment area	3(1)
redevelopment period	3(1)
registered	6(1)
relevant local government	36(1)
responsible agency	3(1)
resumed land	3(1)
resumption day	3(1)
transition day	36(1)
unauthorised development.....	37
WALA.....	3(1)
WAPC	3(1)

Defined Terms

~~Model Natural Resources Conservation Ordinance~~

Published by the North Carolina Wildlife Resources Commission and the Duke University, Nicholas Institute for Environmental Policy Solutions
Original drafters: Amy Pickle, Director of State Policy, Duke University Nicholas Institute for Environmental Policy Solutions;
Amy.Pickle@duke.edu, 919-613-8746; Wildlife Biologists Kacy Cook, NC Wildlife Resources Commission, (Kacy.Cook@newildlife.org, 910-638-4887) and Jeff Marcus (formerly with the NC Wildlife Resources Commission)

We would like to acknowledge experts that provided review and comments to help in crafting this model ordinance, they are: Sean Ryan and the Planning Board of the Town of Navassa; David Owens and Richard Whisnant—UNC School of Government; Sarah Bruce—Triangle J Council of Governments; Judy Francis (AICP), Steve Hall, Linda Pearsall and Allison Weakley—NCDENR Office of Conservation Planning and Community Affairs; The Town of Pittsboro Conservation Ordinance Review Committee, Catherine Deininger of Biocenosis.org; Brooke Massa, Shari Bryant, Ron Linville, Vann Stancil and Travis

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~~Wilson NC Wildlife Resources Commission and Nancy Stairs NC Forest Service.~~

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Explanatory Note: Throughout this model ordinance, comments from the drafters of this ordinance are placed in boxes such as this. These comments should be removed before the ordinance is adopted; they are not part of the ordinance itself.

Optional provisions are provided throughout this document and are intended to address the diverse needs of local governments. Optional provisions are discussed in the commentary and delineated by brackets like these {XXX}.

The **bold underlined text** serves as a prompt for local governments to customize the text or insert local government names.

~~Do not remove comments in italics.~~

This ordinance was developed to address degradation of natural resources, including wildlife habitats, water and air, from the direct and cumulative impacts of development. The intent is to conserve only areas with the most sensitive natural resources and to maintain the healthy functioning of significant natural resources in individual local governments' jurisdictions while accommodating desired growth and development. Enacting local conservation measures will help developers and landowners to meet state and federal environmental permit requirements reducing unexpected delays and design problems.

This model ordinance is not designed as a stand-alone ordinance but offers a variety of optional language and measures to achieve natural resource conservation. The conservation measures provided are based on recommendations from a comprehensive review of the scientific literature. If a local government chooses to incorporate the provisions of this ordinance into a comprehensive land use regulation ordinance, these provisions should be reviewed, amended, or omitted as may be necessary to ensure consistency, avoid redundancy, retain any provisions specifically related to project review and to ensure the ordinance is adopted, implemented, and enforced pursuant to appropriate local government authority.

~~*This model ordinance can be edited and adapted to be implemented as an option that developers can choose in exchange for a density bonus or other type of incentive.*~~

As another alternative, we recommend that conservation development be permitted within the conservation district and that conventional development be a conditional use within the district. For more information on many ways to implement and incentivize conservation development please see the NC Wildlife Resources Commission Green Growth Toolbox at: www.ncwildlife.org/greengrowth.

Defined Terms

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Section I. General Provisions

A. Title

This ordinance shall be officially known as the Natural Resources Overlay District for the [Insert local government name here]. It is referred to herein as “the ordinance.”

B. Authority

This ordinance is adopted pursuant to N.C. Const. art XIV, sec 5 and [Insert appropriate county, e.g., N.C. Gen. Stat § 153A-121 and § 153A-340 (2011) or municipal authority, N.C. Gen. Stat. §160A-174 and §160A-381 (2011) here]

Explanatory Note: Some jurisdictions may wish to incorporate this ordinance into a land use ordinance or unified development ordinance and may want to add a reference to statutory authority for planning and regulation of development (Chapter 153A, Article 18 (Parts 1, 2, and 3) and G.S. 160A, Art. 19). Jurisdictions should evaluate other ordinances to ensure consistent application of land use regulations such as open space, storm water regulations, tree ordinances, and others. In addition, when adopting this ordinance as part of land use regulations, local governments should follow the standards for adopting or amending ordinances found in G.S. 153A-323 or 160A-364 and all other applicable requirements

1. Natural resources such as natural water supply systems, forests, and plant and wildlife habitat provide valuable cultural, educational, and recreational opportunities and support local industries and public health and welfare.
2. Areas that contain a diversity of plant and animal species can be a natural resource of local, state, national, and global significance.

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3. — Plants and animals play an important role in maintaining healthy ecosystems through ecological interactions such as predation, pollination, and seed dispersal. Maintaining healthy natural resources mitigates air pollution, improves water quality, reduces drought and flooding, and sustains local timber, recreation and associated jobs and local revenue.
4. — The quantity and quality of drinking water is enhanced by healthy ecosystems through mechanisms such as water absorption and filtration. These services can be degraded when *impervious surfaces* are placed in sensitive areas.
5. — Maintaining healthy and diverse natural resources is important for a robust farming, forestry, and horticulture economy. These industries rely on pollinators, predators of pests, healthy soil, and other natural resources. These industries can be compromised when incompatible land uses surround them.
6. — Certain types of land development can negatively impact ecosystems, natural areas and wildlife. Properly planned development can maintain these natural resource assets by avoiding the *fragmentation* of key natural areas and the associated reduction of ecosystem function and services.

Explanatory Note: The Findings of Fact are designed to help local governments identify benefits of natural resources conservation specific to their community. This wording is intended to be a clear and simple description of purpose and value of habitat conservation. The local government adopting this ordinance may want to supplement the Findings of Fact, depending on specific local needs, including local government's finding that outdoor recreation, preservation of green space is important to the community. The Findings of Fact are designed to complement the subsequent Purposes and Goals section.

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1. ~~The purpose of the Natural Resources Overlay District is to maintain the quality of life in [insert local government name here] and to protect the health, safety, welfare and general well-being of the citizens of [insert local government name here] by conserving and connecting the highest priority waterways, forests, and habitat for terrestrial and aquatic native plants and animals in [insert local government name here]'s jurisdiction while accommodating development and other land uses.~~
2. ~~The Natural Resources Overlay District is designed to preserve and protect ecosystems while balancing the need for planned growth. This shall be accomplished by minimizing fragmentation or separation of significant natural resource areas, protecting upland habitats in addition to adjacent waterways and water sources, maintaining plant and animal habitat diversity and specifically protecting unique environmental features identified as integral parts of the designated landscape.~~
3. ~~This ordinance shall establish standards and procedures for the use and development of land. The standards and procedures are designed to protect, conserve, enhance, restore, and maintain significant natural resource areas and the ecological connections between them.~~
4. ~~The Natural Resources Overlay District conserves significant natural resource areas identified by [insert local government name here].~~

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5. It is intended that the implementation of this ordinance accomplish the following goals:

Explanatory Note: This subsection is designed to help communities identify relevant goals. This list is illustrative only and some objectives may be redundant or may not capture the full needs of the local government. The local government should evaluate all benefits, including secondary benefits, of adopting a natural resources conservation ordinance.

- a. Create an aesthetically pleasing and functional living environment by conserving remaining healthy terrestrial and aquatic habitats within our jurisdiction.
- b. Maximize the retention of existing describe region's significant natural resources here, for example streams, lakes, longleaf pine forest, bottomland or floodplain forest which constitute *significant natural resource areas*, which is identified as a valuable natural resource of our community.
- c. Connect *significant natural resource areas* with corridors of land in a natural state to maximize the migration of wildlife and plant species among habitat areas.
- d. Maintain balanced outdoor recreation opportunities such as hunting, fishing, bird watching, and other outdoor pursuits.
- e. Create opportunities for greenways throughout the community for trails, connecting habitat, protecting streams, sustaining wildlife, and providing recreation activities for residents.

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- ~~f. Ensure that land uses and development are planned and designed to be harmonious with *significant natural resources areas* and to reduce conflicts with working lands, wildlife conservation, and habitat management activities.~~
- ~~g. Protect remaining large contiguous *significant natural resource areas* from activities that would alter their ecological integrity, balance, or character.~~
- ~~h. Maintain the diversity of plant and wildlife species and habitat found in the community and help to keep rare species from requiring Endangered Species Act protections in the future.~~
- ~~i. Promote multiple community benefits e.g. nutrient pollution reduction, water supply protection, flood protection, steep slope protection, priority plant and animal habitat protection, air quality, soil conservation, minimizing noise and light pollution, and others.~~
- ~~j. Protect and enhance scenic resources including landscapes, ridgelines, meadows, and geologic~~

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features that have special scenic character or a historic or aesthetic interest or value.

F. Relationship to Other Laws, Regulations, and Ordinances:

1. The regulations contained in this law are not intended to be substituted for other general zoning district provisions, but should be considered as additional requirements to be met by applicants, prior to project approval. The purpose of the Natural Resource Overlay District is to provide the [insert local government name here] with an additional level of review and regulation to specify how land use and development, permitted by the [insert local government name here]'s primary zoning districts, occurs in *significant natural resource areas*.
2. This ordinance is not intended to modify or repeal any other ordinance, rule, regulation or other provision of law. The requirements of this ordinance are in addition to the requirements of any other ordinance, rule, regulation, or other provision of law. Where any provision of this ordinance imposes restrictions different from those imposed by any other ordinance, rule, regulation or other provision of law, whichever provision is more restrictive or imposes higher protective standards for human or environmental health, safety, and welfare shall control.⁺
{Alternate language: Nothing in this ordinance is intended to alter or pre-empt any other applicable

⁺ From Jordan Model Stormwater Ordinance for New Development

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~~regulations or the federal, state, or local government as they may apply within or outside the natural resources overlay district. Specifically, all federal or state regulations regarding protection of waterways, water bodies, and wildlife or plant species habitat shall apply throughout the jurisdiction notwithstanding this ordinance. Nothing in this ordinance is intended to usurp, limit or to be inconsistent with the authority of local, state or federal regulatory agencies. Further, the regulations set forth in this ordinance shall be in addition to the regulations set forth in the [insert local government's name here] code regarding landscaping, tree removal, site clearing and wetland protections and setbacks.}~~

G. Severability

~~If the provisions of any section, subsection, paragraph, subdivision, or clause of this ordinance are adjudged invalid by a court of competent jurisdiction, such judgment shall not affect or invalidate the remainder of any section, subsection, paragraph, subdivision, or clause of this ordinance.²~~

H. Interpretation³

1. Meaning and Intent

~~All provisions, terms, phrases, and expressions contained in this ordinance shall be construed~~

³~~Adapted from the Jordan Lake Model Stormwater Ordinance for New Development~~

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~~according to the general and specific purposes set forth in this ordinance. If a different or more specific meaning is given for a term defined elsewhere in [insert name of local government's code of ordinances], the meaning and application of the term in this ordinance shall control for purposes of application of this ordinance. Any term not herein defined elsewhere in the [insert local government name here] Code, or if not defined elsewhere in the Code, then as defined in Webster's New International Dictionary most recent addition, unless the result does not effectuate the intent of the governing bodies, leads to absurd or illogical results, or is inconsistent with the surrounding textual context.~~

~~2. Text Controls in Event of Conflict~~

~~In the event of a conflict or inconsistency between the text of this ordinance and any heading, caption, figure, illustration, table, or map, the text shall control.~~

~~3. References to Statutes, Regulations, and Documents~~

~~Whenever reference is made to a resolution, ordinance, statute, regulation, manual, or document, it shall be construed as a reference to the most recent edition of such that has been finalized and published with due provision for notice and comment, unless otherwise specifically stated.~~

~~4. Word Usage~~

~~a. Mandatory and Discretionary Terms
The words "shall," "must," and "will" are mandatory in nature, establishing an~~

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~~obligation or duty to comply with the particular provision. The words “may” or “should” are permissive in nature.~~

~~b. Conjunctions~~

~~Unless the context clearly indicates the contrary, conjunctions shall be interpreted as follows: The word “and” indicates that all connected items, conditions, provisions and events apply. The word “or” indicates that one or more of the connected items, conditions, provisions or events apply.~~

~~c. Tense, Plural, and Gender~~

~~Words used in the present tense include the future tense. Words used in the singular number include the plural number and plural number includes the singular number, unless the context of the particular usage clearly indicates otherwise. Words used in the masculine gender include the female gender and vice versa.~~

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**Section II. — Natural Resources Conservation
District Established and Official Map**

Explanatory Note: Extensive biological survey information and natural resource maps already exist for the state and can be used by local governments in delineating their Natural Resources Conservation Overlay District. The drafters encourage local governments creating an overlay district to utilize the Biodiversity and Wildlife Habitat Assessment map created by the NC Department of Environment and Natural Resources as the basis for delineating parcel boundaries for their overlay district with the exception of certain habitat types. We recommend that local governments also use additional wildlife, habitat and other natural resources conservation data available to communities in North Carolina. This conservation data is explained and compiled in one place by the NC Wildlife Resources Commission in the Green Growth Toolbox and available at www.newildlife.org/greengrowth. Utilizing existing data reduces the burden on local governments to collect natural resources data on their own. If a local government chooses to develop and use their own data, the model ordinance must be revised accordingly. The NC Wildlife Resources Commission or another natural resources agency may be consulted to provide technical information about the conservation data.

Please note: North Carolina statutes establish special mandates that must be observed in order for the map and ordinance to be adopted, amended or repealed. This model ordinance does not set out those procedures.

Resources Conservation Map and all explanatory information contained therein accompany and are hereby made part of this ordinance. Upon adoption of this ordinance, the parcels included in the Natural Resources Conservation District shall be shown on the official zoning map.

- B.** — The general boundaries of the Natural Resources Conservation District are defined by the best available

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~~conservation data delineating *significant natural resource areas* identified by [insert local government name here], with rights of way and property lines used to determine inclusion or exclusion in the Natural Resources Conservation District.~~

- ~~C. — In the event of a dispute, the applicability of this ordinance to a particular area of land shall be determined by reference to the North Carolina General Statutes, the North Carolina Administrative Code, and local zoning and jurisdictional boundary ordinances.~~

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SECTION III. APPLICABILITY

A. Applicability

~~The provisions of this ordinance shall apply to all development that requires a development approval within the Natural Resources Conservation District, unless the development is expressly exempted by law, or as provided herein. Before the [insert name of local government here] issues a development approval, the development on the parcel shall have an approved natural resources conservation plan as required pursuant to this ordinance. Whenever the city annexes any parcel or property, the annexed area shall undergo review for a determination of existence of significant natural resource area.~~

Explanatory Note: Most activities that require formal project review or even just a building permit are obvious choices as applicable activities given some degree of review of these activities is expected at the local level. Activities that could affect the functional value of the resource being considered by the ordinance, but that do not necessarily trigger review under current mechanisms need to be carefully considered.

Local governments should consider how to coordinate natural resources conservation plan review and approval with other land use project reviews. For example, local governments that administer their own sedimentation and erosion control program should ensure that natural resources conservation plan approval occurs prior to grading or sedimentation and erosion control plan approval. In some cases, a natural resources conservation plan may require revision when the preliminary subdivision plan is finalized. Local governments may choose to require a preliminary plan to be approved along with the preliminary subdivision plan and require a final plan to be approved prior to final approval of the subdivision plan.

Alternatively, this model ordinance can be edited and adapted to be implemented as an option that developers can choose in exchange for a density bonus or other type of incentive.

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B. Exempt Activities

Explanatory Note: This model ordinance does not identify specific exempt activities because local governments have different needs, capacity for review and enforcement, and authority. The drafters encourage local governments to evaluate specific types of activities to be included and recommend the following:

1. Activities that do not pose a significant adverse impact on the environmental value of the *significant natural resource area*, e.g., maintenance of existing structures or open spaces or *de minimus* building activities. Local governments may choose to exempt single family residences for lots one acre or less existing as of the date of the ordinances. Suggested language:

{Single family and duplex residential and recreational development that cumulatively disturbs less than one acre and is not part of a larger common plan of development or sale is exempt from the provisions of this ordinance.

Commercial, industrial, institutional, multifamily residential or local government development that cumulatively disturbs less than one half acre and is not part of a larger common plan of development or sale is exempt from this ordinance.

Redevelopment that cumulatively disturbs less than one acre and is not part of a larger common plan of development or sale is exempt from the provisions of this ordinance.

Development and redevelopment that disturbs less than the above thresholds are not exempt if such activities are part of a larger common plan of development or sale and the larger common plan exceeds the relevant threshold, even though multiple, separate, or distinct activities take place at different times on different schedules} (adopted from the Jordan Model Stormwater Ordinance for New Development)

2. Agriculture, forestry, silviculture, and any other activity the local government determines is consistent with conservation of *significant natural resource area* or activities for which the local government does not have the authority to regulate.

3. Development activities that are vested pursuant to statutory or common law.

Alternatively, this model ordinance can be edited and adapted to be implemented as an option that developers can choose in exchange for a density bonus or other type of incentive.

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SECTION IV. STANDARDS

Explanatory Note: This section sets out the land use guidelines designed to conserve *significant natural resource areas*. The overall structure requires developers and land owners that are not exempt to conserve *significant natural resource areas* (up to 50% of the tract—See B.2. management plan) and implement performance standards to offset impacts to the *significant natural resource areas*. The standards below communicate the best current scientific knowledge about conservation of natural resources alongside development and can be changed to meet the needs of your jurisdiction.

resource conservation plan shall require an enforceable restriction on property usage that runs with the land to ensure that future activities maintain the site consistent with the approved project plans.

B. Natural Resources Conservation Plan

Natural resources conservation plans shall be developed by persons proposing to impact a *significant natural resource area* within the Natural Resources Conservation District.

Explanatory Note: The NC Wildlife Resources Commission or another natural resources agency may be consulted to evaluate natural resources conservation plans. It is advisable to identify and inquire with agency biologists at the earliest opportunity ahead of submittal of the natural resources conservation plan to schedule technical guidance, so that reviews can be completed in a timely manner.

Ordinance without an approved *natural resources conservation plan*. The person proposing to conduct *development activity* shall prepare a *natural resources conservation plan* that consists of the following:—

1. Site information, if not otherwise required for the approval of the *development*, including the following:
 - a. A location plan and boundary line survey of the tract.

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- b. ~~————~~ The location of the Natural Resources Conservation District boundaries.
- e. ~~————~~ A habitat survey shall confirm the presence of *significant natural resources*. The habitat survey should include documentation of wetlands, rock outcrops, intermittent and perennial streams, caves and mines, longleaf pine forest, upland hardwoods and upland pine forest and other *significant natural resource areas*. The habitat survey shall be conducted by a *qualified biologist* with demonstrated experience in wildlife habitat identification. The boundaries of all of the *significant natural resources* shall be identified and labeled on the sketch plan and all site plans. Photographs depicting each of the significant natural resources on the site shall be provided.
- d. ~~————~~ The site plan must identify and provide pictures of existing disturbed areas, existing buildings, structures, utility lines, sewers, water and storm drains, all constructed stormwater management systems, and existing impervious surfaces.
- e. ~~————~~ Detailed sketch plan of proposed development outlining the total disturbance area, including proposed building footprints, site property improvements, utilities, and landscaping. The sketch plan is intended to be an approximation of the final site plan and serves the purpose of providing an opportunity for changes to be proposed ahead of significant investment by the applicant. The sketch plan should be reviewed by

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- ~~the planning department ahead of formal submission of the detailed final site plan.~~
- ~~f. Final site plan of proposed development outlining the total disturbance area, including proposed building footprints, site property improvements, utilities, and landscaping.~~
- ~~2. Management plan for *significant natural resources* preserved on site. The management plan shall identify habitat management activities that will act to maintain the *significant natural resources*. The management plan shall be developed by a *qualified biologist* and shall contain specific habitat management implementation activities, schedules, and assignment of responsibility. The management plan shall also include the following performance standards that are applicable to the type of habitat found in the habitat survey:~~
- ~~a. *Significant natural resources* shall not be cleared of vegetation and shall not be developed in any manner that would negatively impact the habitat, except under the following conditions:~~
- ~~i. Improvements that protect or enhance the enjoyment of the habitat, including but not limited to uncovered walkways, self-guided trails, and protective fences.~~
- ~~ii. If the *significant natural resources* cover greater than 50% of the tract, then up to 50% of the tract may be developed. Significant natural resources should be permanently protected in order of priority listed in the definition section such that any higher item on the list is a higher priority. The undeveloped habitat areas shall be~~

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~~contiguous within the tract and with habitat areas on adjacent tracts to the maximum extent possible. The undeveloped habitat should have the maximum habitat interior to edge ratio possible (circular shape) to prevent habitat fragmentation. To the maximum extent possible the development design shall protect and connect as many priority significant natural resources as possible and such that wetlands, as defined under definition 22.c, are not filled and the protection area is maintained around the wetland and connected to other wetlands or streams or floodplain forest. Connectivity means that habitat areas are linked with areas of contiguous, natural vegetation that is at least 300 feet wide.~~

- iii. ~~To provide for access to otherwise inaccessible parts of the parcel/development. If part of the parcel could be developed, but would be inaccessible due to the existence of significant natural resources, a road and/or utilities may be constructed through the significant natural resources. The road and/or utilities, however, shall cross at the narrowest practical point and shall be designed and constructed to the maximum extent possible to minimize impact to and fragmentation of the highest priority significant natural resources. Where~~

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significant natural resources must be negatively impacted, an equal area must be restored and protected on site, up to 50% of the tract.

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b. Construction Performance Standards

Explanatory Note: Construction standards must be reviewed to ensure consistency with the local government's authority to regulate construction stormwater and with the local government's other stormwater and development programs. If the local government does not have a delegated sedimentation and erosion control program and approved ordinance, then local governments may not impose sedimentation and erosion controls pursuant to this ordinance.

North Carolina General Statute § 113A-60 allows local governments to develop jurisdiction specific sedimentation and erosion control ordinances. Local sedimentation and erosion control programs must be approved by the North Carolina Sedimentation Control Commission and may include provisions that exceed the minimum standards established in the Sedimentation Pollution Control Act, N.C. Gen. Stat. § 113A-50 et seq. If the local government adopting a natural resources conservation ordinance also has a local sedimentation and erosion control program, the drafters encourage the local government to add the following measures to protect significant natural resource areas:

1. Minimize the clearing and grading of native vegetation and target development activities to areas with *non-native invasive species* vegetation. A list of non-native invasive plants in North Carolina can be found at <http://newildflower.org/invasives/list.htm>
2. Protect waterways by preventing clearing adjacent to waterways, and stabilize drainage ways
3. Phase construction for construction sites larger than 25 acres to reduce time and area that disturbed soils are exposed.
4. Stabilize soils within 14 calendar days with a grass or mulch cover.
5. Protect steep slopes, and avoid clearing or grading existing steep slopes as much as is practical.
6. To the extent possible, employ advanced settling devices. Some examples include increased wet or dry storage volume, perforated risers, better internal geometry, use of baffles, skimmers and other outlet devices, and multiple cell construction.

If the local government adopting a natural resources conservation ordinance does not have a local sedimentation and erosion control program, then the Land Quality Section administers the North Carolina Sedimentation Control Act of 1973 under the North Carolina Sedimentation

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procedures for the dedication of park, recreation, and open space areas. Conservation easements on *significant natural resource areas* may, at the discretion of [insert local government name here], be required as a condition of natural resources conservation plan approval.

~~c.~~ **Planning and Post-Construction Performance Standards:**

- ~~i.~~ **Runoff from *impervious surfaces* on the parcel shall not be discharged directly to the *significant natural resources* without vegetated filtration and energy dissipation.**
- ~~ii.~~ **Sewer lines, water lines, and other utility *infrastructure* shall not be constructed within 100 feet of perennial and intermittent streams to the maximum extent possible. All utility crossings shall be**

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minimized. The directional bore stream crossing method (installation of utilities beneath the riverbed avoiding impacts to the stream and protection area) shall be used for utility crossings wherever practical, and the open stream crossing method shall only be used when water level is low and stream flow is minimal.

- iii. Maximum *impervious surface* coverage Not more than fifteen (15) percent of the total tract area may be covered by buildings and any *impervious surfaces*.

Explanatory Note: The impervious surface is calculated over the entire tract and includes the conserved area. Therefor the impervious surface on the buildable area would be higher than 15% and up to 30%, provided a conservation area is required. Because the model overlay district is intended to cover only those areas with the most sensitive natural resources it is important to limit impervious surface in order to maintain natural water flow on the site and reduce stormwater runoff into sensitive areas. The 15% limit was chosen because this is the average level of impervious surface on conservation subdivisions in NC. It is ideal that highly sensitive areas not be zoned for intense development, industrial or commercial land uses. However, if the district in the community is extensive it may be necessary to raise the impervious surface limits to a higher proportion or to offer a density bonus for certain necessary land uses.

(50) feet of intermittent streams, or within the 100-year floodplain, unless the pesticide is labeled for use in aquatic systems or is part of the approved *Natural Resource Conservation Plan*.

- v. If curbs are used, curbing shall be with a 1:4 slope to allow passage of small animals.

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- vi. — Use bridges for all permanent roadway crossings of streams and associated wetlands. If culverts must be used, culvert must be designed to allow passage of aquatic organisms by burying the culvert(s) in the stream bottom or bank by at least 1 foot. Stream relocation or widening shall be avoided but may be done if necessary providing state-of-the-art natural channel design and construction techniques are used.
- vii. — The land surrounding built structures should be maintained in natural vegetation to the maximum extent possible. *Non-native invasive species* shall not be planted for any purpose.
- viii. — The post-development condition should maintain connectivity of all *significant natural resources*, both within the tract and between adjacent tracts. Connectivity means that habitat areas are linked with areas of contiguous, natural vegetation that is at least 300 feet wide.
- ix. — Site gas stations, car washes, and other potential “spill” land uses at least two hundred (200) feet from perennial and intermittent streams.

C. — Approval of Natural Resources Conservation Plan:
Approval of a Natural Resources Conservation Plan does not abrogate any legal requirement to comply with the regulations of any other governmental agency, local, state, or federal, which may have jurisdiction over the proposed activity upon the land.

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1. The [insert relevant local government approval agency] may impose conditions of approval as needed to ensure compliance with this ordinance. The conditions shall be included in the approval.
2. Approval will be issued by the [insert relevant approval agency] pursuant to this ordinance only if the applicant demonstrates that:
 - a. The natural resources conservation plan complies with this ordinance, including being consistent with the purposes and objectives set forth in this ordinance.
 - b. The natural resources conservation plan completely addresses the minimum performance standards outlined in this ordinance. If the [insert appropriate local government approval agency here] determines that the natural resources conservation plan is incomplete, the developer shall be notified of the deficient elements and shall be provided the opportunity to submit a complete natural resources conservation plan.
 - c. The proposed activity is compatible with

Explanatory Note: Local governments may also choose to specify the expiration of unimplemented Natural Resources Conservation Plans and set a time period consistent with the local government's normal site plan approval period, which is typically two (2) years. Language adopted from the City of Tampa's Upland Habitat Protection Ordinance: {Approval of a natural resources conservation plan shall be effective for a period of two years from date of issue unless otherwise specified on the approved plan. Any plan approval not acted upon within the prescribed time limit shall become void and future work shall require a new plan approval.}

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SECTION V. DEFINITIONS

Explanatory note: It is intended that local governments adjust the definitions to suit the needs and purpose of their ordinance. For example if the criteria contained within the definition of *significant natural resource area* are too stringent, the criteria can be changed to fit the local government's needs. The criteria within the definition of habitats and *significant natural resource areas* are based on the best current scientific knowledge and are not defined to meet any existing state or federal

- ~~2. *Aquatic Significant Natural Heritage Area:* an Aquatic Significant Natural Heritage Area as defined and mapped by the NC Natural Heritage Program. These are, "aquatic sites that are of special biodiversity significance. A site's significance may be due to the presence of rare species, exemplary or unique natural communities, or other important ecological features. The areas identified represent the approximate boundaries of ecologically significant sites."~~
- ~~3. *Building:* The word "building" includes the word "structure."~~
- ~~4. *Protection area:* A portion of property designated to protect natural areas from degradation or pollutants. Native vegetation is not removed from these areas unless it is with a goal of improving wildlife habitat through thinning of young, thick vegetation or prescribed burning.~~
- ~~5. *Developer:* The person, firm, corporation or legal entity that has financial or operational control over the development activity; or the person, firm, corporation, or legal entity in possession or control of the land when he/she directly or indirectly allowed the~~

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development activity, has benefited from it, or has failed to comply with any provision of this ordinance.

6. ~~*Development:* The division of a parcel of land into two or more parcels, the construction, reconstruction, conversion, structural alteration, relocation, or enlargement of any building or other structure or facility, or any grading, soil removal or relocation, excavation or landfill, or any use or change in the use of any building or other structure or land or extension of the use of the land.~~⁴

7. ~~*Development approval:* any of the following approvals issued by the local government regardless of the form of approval, that are for the development of land:~~

- ~~a. Any approval of an erosion and sedimentation control plan granted by a local government or by the North Carolina Sedimentation Control Commission under Article 4 of Chapter 113A of the General Statutes.~~
- ~~b. Any building permit issued under Article 9 of Chapter 143 of the General Statutes.~~
- ~~c. Any approval by a county of sketch plans, preliminary plats, plats regarding a subdivision of land, a site specific development plan or a phased development plan, a development permit, or a building permit under Article 18 of Chapter 153A of the General Statutes.~~
- ~~d. Any approval by a municipality of sketch plans, preliminary plats, plats regarding a subdivision of land, a site specific development plan or a phased development~~

⁴~~Adopted from “The Permit Extension Act of 2009” S.L. 2009-406~~

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plan, a development agreement, or a building permit under Article 19 of Chapter 160A of the General Statutes.⁵

~~8. *Disturbance area or disturbed area:* the area where vegetation clearing or land manipulation takes place for the purpose of development. This includes the area where fill material is removed or placed, the area affected by changes to natural hydrology, land converted from natural vegetation to lawns, golf courses and other *non-native vegetation*, and any area where development and related activities negatively impact wildlife habitat. This term includes the area lost to the construction of new lakes and other impoundments. It does not include alteration of existing disturbed areas (e.g. paving of an existing gravel road).~~

~~9. *Existing conditions:* Conditions that exist at time of plan or plat submittal.~~

~~10. *Final Plat:* The final map of all or a portion of a subdivision which is presented for final approval.~~

~~11. *Flood or flooding:* A general and temporary condition of partial or complete inundation of normally dry land areas from: (1) the overflow of inland waters; and/or (2) The unusual and rapid accumulation of runoff of surface waters from any source.~~

~~12. *Fragmentation:* Disruption in continuity and loss of habitat or *significant natural resources* by development of land or alteration of *natural vegetation*. Disruption or impediment of the natural movement and dispersal of wildlife within and between previously connected blocks of habitat caused by removing or~~

⁵ ~~Adopted from “The Permit Extension Act of 2009” S.L. 2009-406~~

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~~altering the natural vegetation (forest, shrubland and grassland) within or between blocks of habitat or by building structures or other infrastructure within or between habitats and significant natural resources.~~

- ~~13. *Impervious Surface:* A surface composed of any material that impedes or prevents infiltration of water into the soil. Impervious surfaces shall include but are not limited to impervious roofs, driveways, patios, sidewalks, parking areas, tennis courts, concrete or asphalt streets, solid decks, or compacted gravel surfaces. Wooden slatted decks and the water area of swimming pools shall be considered pervious. Calculations of impervious surfaces for streets shall include the area compacted for impermeable pavement or gravel base for impermeable pavement.~~
- ~~14. *Infrastructure:* includes roads, sidewalks, houses, commercial and industrial buildings, utilities and utility corridors, railways, docks, and other forms of built structures and impervious surfaces.~~
- ~~15. *Natural Resources Conservation Plan:* A document that details the specific required measures that the developer will take to minimize impacts and fragmentation of significant natural resources on the development site as described in section IV.B.~~
- ~~16. *Natural vegetation:* Vegetation, excluding any non-native vegetation, as it exists on the tract prior to any of the proposed development or disturbance associated with the proposed development that is not part of a disturbance area or a disturbed area.~~

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~~17. Non-native invasive species: 1) non-native (or alien) to the ecosystem under consideration and 2) whose introduction causes or is likely to cause economic or environmental harm or harm to human health.⁶~~

~~18. Non-native vegetation: non-native (or alien) to the ecosystem under consideration.⁷~~

~~19. Plat: A map, chart, or plan of a tract or parcel of land which is to be or which has been subdivided.~~

~~20. Person includes, without limitation, individuals, firms, partnerships, joint ventures, trusts, trustees, estates, corporations, associations, and any other similar entities.~~

~~21. Qualified biologist: A qualified biologist is defined as one or more of the following: a Wildlife Society Certified Wildlife Biologist (CWB), a Professional Wetlands Scientist (PWS) certified by the Society of Wetlands Scientists, a Certified Ecologist or Certified Senior Ecologist certified by the Ecological Society of America, a biologist currently employed by the NC Wildlife Resources Commission, US Fish and Wildlife Service, NC Natural Heritage Program, US Army Corps of Engineers, or a biologist that is prequalified by the NC Department of Transportation or the NC Environmental Enhancement Program to conduct biological or ecological surveys.~~

~~⁶ U.S. Department of Agriculture. Native Invasive and other Plant Related Definitions. Retrieved 8/3/12.~~

~~http://www.et.nres.usda.gov/plant_definitions.html~~

~~⁷ U.S. Department of Agriculture. Native Invasive and other Plant Related Definitions. Retrieved 8/3/12.~~

~~http://www.et.nres.usda.gov/plant_definitions.html~~

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- ~~22. *Runoff*: Water from precipitation that flows off a property.~~
- ~~23. *Sediment*: Solid particulate matter, both mineral and organic that has been or is being transported by water, air, gravity, or ice from its site of origin.~~
- ~~24. *Sedimentation*: The process by which sediment resulting from accelerated erosion has been or is being transported off the site of the land disturbing activity or into a lake or natural watercourse.~~
- ~~25. *Significant natural resource areas*: shall include those areas so designated by **[insert local government name here]** by virtue of containing rare or declining habitats or habitats that support rare species or a high diversity of species. These significant natural resource areas consist of the following natural resources and habitats which are:~~
- ~~a. Jurisdictional and non-jurisdictional wetlands or endangered species habitat as delineated by state and federal agencies for environmental permitting.~~
 - ~~b. The presence of a natural community or communities as defined by the NC Natural Heritage Program in the Classification of the Natural Communities of North Carolina⁺ within *Significant Natural Heritage Areas* identified and mapped by the NC Natural Heritage Program. *Significant Natural Heritage Areas* are not the same as significant natural resource areas and have their own definition.~~

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- ~~e. An average 750 foot radius upland area of any shape adjacent to isolated non-alluvial wetlands not connected to streams or not within conserved floodplains, starting from the edge of the water or watermark. This area includes a 150 foot radius protection area of symmetrical shape around the wetland water's edge. Wetlands are jurisdictional and non-jurisdictional wetlands with an area of water inundation over 100 square feet in size and of the following types defined by the NC Natural Heritage Program in the Classification of the Natural Communities of North Carolina: Floodplain Pool, all types of Mountain Bogs and Fens, Upland Seepages, Piedmont and Mountain Upland Pools and Depressions and Coastal Plain Depression Communities and Interdune Ponds.~~
- ~~d. Two hundred (200) feet on either side of permanent ("blue line") streams or rivers within subwatersheds (14 digit Hydrologic Unit Code) which support federally endangered or threatened aquatic species. These protection areas may be reduced to accommodate other priority habitat conservation on site, but shall not be less than 100 feet.~~
- ~~e. A 300 foot wide area on either side of the waterway adjacent to Aquatic Significant Natural Heritage Areas identified by the NC Natural Heritage Program. These protection areas may be reduced to accommodate other priority habitat conservation on site, but shall not be less than 100 feet.~~
- ~~f. Habitat that is sufficient (as determined by the qualified biologist) to conserve species occurrences on the tract of~~

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~~documented Natural Heritage Element Occurrences tracked by the NC Natural Heritage Program.~~

~~g. Sufficient habitat as determined by the qualified biologist, of state listed wildlife species or federally listed plants observed opportunistically during site visits. The term “listed” includes designation as Endangered, Threatened, or Special Concern.~~

~~h. High elevation habitats (Blue Ridge Mountains) which are forests above 3500 ft. in elevation that meet the definition of one of the following community types defined by the NC Natural Heritage Program in the Classification of the Natural Communities of North Carolina: Fraser fir forest, red spruce Fraser fir forest, high elevation red oak forest, northern hardwood forest, and boulderfield forest.~~

~~i. Beaches, dunes and estuarine islands (Coastal Plain) which are sand covered habitats occurring along the immediate ocean coastline and in estuaries. Dune vegetation is characterized by sand substrate dominated by open sand and grasses including sea oats grass and American beach grass. Some shrubs and exotic vegetation may be present. Upper beach vegetation can include sea rocket, Dixie sandmat, seaside sandmat, and seabeach amaranth. Estuarine islands include both naturally occurring islands and islands created by dredged materials in estuaries.~~

~~j. A three hundred and thirty (330) foot wide area on all sides of a colonial waterbird nesting colony (in the~~

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~~Piedmont or Coastal Plain) encountered or as mapped by the NC Wildlife Resources Commission. A waterbird nesting colony is defined as an area where 2 or more colonial waterbirds are nesting or have nested within the past 2 years. Colonial waterbirds are any species of heron, egret, anhinga, tern, skimmer, plover, ibis, pelican, stork, and gull. These data are mapped (please see the user's manual for details on obtaining these maps).~~

~~k. A 650-foot protection area around rock outcrops, caves, and mines (Piedmont and Mountains). Rock outcrops which are natural features that contribute to a natural community structure consistent with physical characteristics of the underlying geological unit. For the purposes of this ordinance, rock outcrops include any of the following natural communities described by the NC Natural Heritage Program in the Classification of the Natural Communities of North Carolina: High and low elevation rocky summit, High and low elevation granitic dome, Montane, Piedmont, and Coastal Plain acidic and mafic cliffs, Montane and Piedmont mafic and calcareous cliffs, Coastal Plain marl outcrops, Granitic flatrocks, High elevation mafic glade, Diabase glade, Ultramafic outcrop barren and Boulderfield forests.~~

~~l. Maritime forests and shrublands found on the Coastal Plain on stabilized upper dunes and flats protected from salt water flooding and the most extreme salt spray. This habitat includes all types of Maritime Upland Forests as described by the NC Natural Heritage Program in the Classification of the Natural Communities of North Carolina. Canopies of maritime forests can be dominated by live oak, sand laurel oak, loblolly pine, beech,~~

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~~American holly or hickory. The understory is often dominated by dense shrubs and vines. Any forests or shrublands along the coast or islands meeting this description will be considered maritime forest.~~

- ~~m. Longleaf pine forest (Piedmont, Sandhills and Coastal Plain), defined as forests where 20% of the tree canopy consists of longleaf pine trees, regardless of age, within a stand at least 10 contiguous acres in size. These 10 acres can occur solely on the development tract or only a portion of the 10 acres can occur within the development tract.~~
- ~~n. An undeveloped area at least 300 feet wide connecting isolated wetlands on the property.~~
- ~~o. Floodplain forests with a canopy that is dominated by hardwood trees within the 100 year floodplain. Floodplain forests are also Coastal Floodplains and Piedmont and Mountain Floodplains within and outside of the 100 year floodplain as defined by the NC Natural Heritage Program in the Classification of the Natural Communities of North Carolina.~~
- ~~p. Wet Pine Savannas (Piedmont, Sandhills and Coast), Peatland Pocosins, Streamhead Pocosins (Sandhills and Coast) and Coastal Plain Nonalluvial Wetland Forests as defined by the NC Natural Heritage Program in the Classification of the Natural Communities of North Carolina.~~

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- ~~q. A 100 foot wide area adjacent to each side of perennial streams, rivers, lakes and reservoirs and a 50 foot wide area adjacent to intermittent streams.~~
 - ~~r. Mature hardwood forest consisting of greater than 25% hardwood trees native to the region over 50 years old or greater than 20 inches diameter to indicate “mature” trees (this will vary depending upon tree species and growing conditions).~~
 - ~~s. Lands designated by [insert local government name] as important for hunting, wildlife viewing, and other traditional forms of wildlife related recreation, including lands outside of NC Wildlife Resources Commission Game Lands, within 150 yards of Game Land boundaries. These data are mapped (please see the user’s manual for details).~~
 - ~~t. Wildlife corridors and habitat connectors between significant natural resource areas where sufficient information exists to designate these areas or where these areas are part of the Biodiversity and Wildlife Habitat Assessment of the NC Department of Environment and Natural Resources Conservation Planning Tool.~~
- ~~26. *Significant natural resources*: significant natural resource areas that have been confirmed in site surveys by the *qualified biologist* and or state and federal permitting biologists.~~
- ~~27. *Significant Natural Heritage Area*: A Significant Natural Heritage Area as defined and mapped by the NC Natural Heritage Program. These are, “terrestrial sites that are of special biodiversity significance. A site’s significance may be due to the~~

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~~presence of rare species, exemplary or unique natural communities, or other important ecological features. The areas identified represent the approximate boundaries of ecologically significant sites.” These data are mapped (please see the user’s manual for details on obtaining these maps).~~

~~28. *Site Plan*: An accurately scaled development plan that shows existing conditions on a site as well as depicting details of proposed development.~~

~~29. *Stormwater*: The flow of water which results from precipitation and which occurs immediately following rainfall or snowmelt.~~

~~30. *Subwatersheds which support federally endangered or threatened aquatic species*: These watersheds (14 digit Hydrologic Unit Code) have been surveyed by state and federal biologists and are known to contain federally endangered and threatened species. These data are mapped (please see the user’s manual for details on obtaining these maps).~~

~~31. *Tract*: Contiguous land under one ownership or under multiple ownership either developed as a single unit or recorded as a single unit.~~

~~32. *Wetlands*: Jurisdictional and non-jurisdictional wetlands as defined or delineated by state and federal regulatory agencies or those wetlands following the definition under the definition of significant natural resource areas (c.). Wetlands are important for flood and drought control and water pollutant filtration and act as sponges across the landscape.~~

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~~33. *Wildlife corridors:* Areas of undeveloped land at least 300 feet wide that connects significant natural resource areas allowing wildlife to move between habitats.~~

Endnotes

~~[For ease of reference detach these notes and read them alongside the draft.]~~

~~[†]Shafale, M.P. 2012. Classification of the Natural Communities of North Carolina, Fourth Approximation. North Carolina Natural Heritage Program, Raleigh.~~